

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & CO., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent*.

DOCKET NO. 24-01

Served: March 8, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On January 4, 2024, the Commission issued a Notice of Filing of Complaint and Assignment for this proceeding. On February 6, 2024, Complainant filed an Amended Complaint. On February 20, 2024, Respondent filed its Answer to the Amended Complaint.

On March 6, 2024, the parties submitted a Joint Status Report and Proposed Schedule (“JSR”) that indicates they participated in a conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) and have “agreed to mediate.” JSR at 1. Pursuant to that agreement “the Parties have also agreed to a limited exchange of documents to facilitate mediation, after which they will participate in a second conference with CADRS in two weeks’ time.” *Id.*

The JSR does not state whether the parties have exchanged initial disclosures, discussed discovery requests, or discussed the proportionality of discovery, the burden and expense of discovery, and the discovery of electronically stored information, as required by § 502.141(b). If the parties have not yet done so, they must exchange initial disclosures and discuss discovery, including production of electronically stored information, by the date indicated below.

Both parties request an oral hearing in this matter. Pursuant to 46 C.F.R. Section 502.62 (a)(5), “[t]he presiding officer will determine whether an oral hearing is necessary.” At this point in the proceeding, it is not clear that there is reason to conduct an oral hearing. Accordingly, the parties’ request for oral hearing is **DENIED**.

The parties propose a reasonable schedule that accommodates their planned mediation¹ while moving forward with discovery. However, because the proposed schedule extends discovery beyond 150 days from the service of Respondent’s answer, the parties are cautioned that delays during discovery or amendments to the schedule may result in shortening the briefing

¹ The parties state that a mediation discussion with CADRS is scheduled for March 19, 2024. Since mediation is voluntary, that date is not included in the Scheduling Order.

period, which is longer than typically permitted. If the parties meet their discovery deadlines, the briefing schedule will be allowed. A joint status report has been added to the schedule to assist the parties with scheduling. Accordingly, the parties are hereby **ORDERED** to follow this schedule:

March 11, 2024	Initial disclosures (if not completed)
March 15, 2024	Limited document exchange between parties
March 27, 2024	Initial written discovery requests
April 3, 2024	Joint Status Report
April 15, 2024	Complainant to identify expert witnesses, if any
April 26, 2024	Parties to serve objections and responses to initial written discovery requests
May 16, 2024	Depositions of fact witnesses may begin to be noticed
May 17, 2024	Complaint to serve initial expert reports, if any
May 24, 2024	Respondent to identify rebuttal expert witnesses, if any
June 12, 2024	Expert depositions may begin to be noticed, if any
June 24, 2024	Respondent to serve rebuttal expert reports, if any
June 27, 2024	Last day to serve supplemental written discovery requests
July 22, 2024	Parties serve objections and responses to supplemental written discovery requests
July 26, 2024	Complete depositions of fact and expert witnesses
July 26, 2024	Close of discovery
August 26, 2024	Complainant's brief, proposed findings of fact, and appendix
October 4, 2024	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
October 18, 2024	Complainant's reply brief and responses to proposed findings of fact

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All

requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must follow the instructions in the Initial Order, including the requirements for submitting confidential information. Parties may be required to refile any documents that do not follow the requirements below or in the Initial Order.

The parties’ briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party’s] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e). The brief should cite to evidence in the appendix using the required sequential numbers (see below).
2. **[Party’s] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact, e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party’s] Responses to [Party’s] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party’s proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party’s] proposed findings of fact with the hard copies of the response to [Party’s] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.

4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
- a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins, and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.



Linda S. Harris Crovella
Administrative Law Judge